Titanium Financial
Consultancy Co. Ltd
"Journey to Financial Freedom"

CLIENT REGISTRATION & CREDIT APPLICATION FORM

INSTRUCTIONS: Please complete this form in ENGLISH and BLOCK LETTERS. Ensure all mandatory fields are filled accurately.

SECTION A: IDENTITY DETAILS

EITHER

INDIVIDUAL APPLICANT

- **Full Name of Applicant:**

_____

- **Age:** _____

- **National Identification Number (NIN):**

_____ *(Attach copy of National ID)*

- **Place of Work / Employer:**

_____

- **Occupation / Profession:**

_____

OR

CORPORATE / BUSINESS APPLICANT

- **Registered Company / Business Name:**

_____

- **Registration / Incorporation Number:**

_____

- **Nature of Business:**

_____

• *Mandatory Documents Attached:* Certificate of Incorporation / Registration , Valid Trading Licence / Tax Clearance Certificate

SECTION B: CONTACT & ADDRESS DETAILS

• **Physical / Residential / Business Address:**
_____

• **Town / Division / District:** _____

• **Primary Telephone Contact:**
_____

• **Alternative Contact:**
_____

• **Email Address:**
_____

SECTION C: CREDIT & FACILITY DETAILS

• **Principal Loan Amount Requested (UGX):**
_____

• **Facility Duration / Tenor (Months):**
_____

• **Proposed Collateral / Security:**
_____

SECTION D: LEGAL STATUTORY FEES & FINANCIAL COVENANTS

Notice to Applicant: By executing this document, the Applicant acknowledges and agrees that the financial facility, if approved, shall be subject to a distinct multi-tiered cost structure consisting of a fixed statutory interest rate alongside administrative management operational fees.

Fee Description	Applied Rate / Flat Amount
1. Contractual Interest Rate	2.5% per month (calculated on the principal amount)
2. Credit Monitoring, Management, and Tracking Fee	UGX _____ per month (Fixed sum balance)

3. Additional Ancillary Fees	To be determined upon asset verification (Includes: Processing fees, Caveat fees, Legal fees, and Transfer charges).
4. Total Cumulative Monthly Repayment Obligation (Principal + Interest + Monitoring Fees):	UGX .....per month

SECTION E: APPLICANT DECLARATION & ACKNOWLEDGEMENT

I/WE hereby declare that the details furnished herein above are true, accurate, and correct to the best of my/our knowledge, information, and belief. I/We unconditionally undertake to notify **Titanium Financial Consultancy Company Ltd** immediately of any material changes occurring in the stated particulars.

In the event that any information provided herein is discovered to be false, misleading, untrue, or a misrepresentation of material facts, I/we fully acknowledge that I/we may be held civilly and criminally liable under the relevant laws of Uganda, and any facility granted pursuant to this application may be summarily terminated or recalled.

- **Name of Authorized Signatory / Applicant:**

_____

- **Designation (For Corporate Entities):**

_____

- **Signature / Common Seal: _____ Date (DD/MM/YYYY):**

_____

FOR OFFICIAL USE ONLY

- **Verified & Processed By (Officer Name):**

_____

- **Designation:**

_____

- **Signature: _____ Date (DD/MM/YYYY): _____**

- **Credit Committee Status:** [ ] Approved [ ] Deferred [ ] Rejected

THE REPUBLIC OF UGANDA
GUARANTEE AND INDEMNITY AGREEMENT
DATED THIS _____ DAY OF _____, 20_____
BY:

- **I .....(Name, Guarantor 1)**, of _____, [City/District], Uganda (NIN: _____), Tel No.....:..... and E-mail (if any).....
- **I.....(Name, Guarantor 2)**, of _____, [City/District], Uganda (NIN: _____), Tel No..... and E-mail (if any).....

*(hereinafter individually referred to as a **"Guarantor"** and collectively as the **"Guarantors")***

IN FAVOUR OF:
TITANIUM FINANCIAL CONSULTANCY CO. LIMITED, a microfinance / money lending institution duly incorporated in Uganda, of **P.O. Box 199046, Kampala** in Uganda *(hereinafter referred to as the **"Lender")**.*

WHEREAS:

A. The Lender has agreed to make available to .....**(BORROWER NAME)**, of P.O. Box _____, of _____(CITY) in Uganda (NIN: _____), Tel No.....:..... and E-mail (if any).....*(hereinafter referred to as the **"Borrower")***, a loan facility or financial accommodation up to an aggregate principal limit not exceeding **UGX...../= (Uganda Shillings ..... Only)**.

B. The execution of this Guarantee is a condition precedent to the Lender granting the loan facility to the Borrower.

IT IS HEREBY AGREED AND DECLARED AS FOLLOWS

1. DEFINITIONS & INTERPRETATION

1.1 **"Principal's' Obligation's"** means all monies, interest, default fees, charges, taxes, and legal recovery costs now or hereafter due, owing, or incurred by the Borrower to the Lender under the loan facility.

1.2 **"Maximum Guarantee Amount"** means **principal's' obligations' value)**, plus any accruing interest, fees, and enforcement expenses properly incurred by the Lender.

2. GUARANTEE AND INDEMNITY

2.1 **Guarantee:** The Guarantor's' hereby jointly and severally, unconditionally and irrevocably guarantee's' the prompt payment and discharge on demand of all Principal's Obligations and Maximum Guarantee Amount owed by the Borrower to the Lender.

2.2 **Indemnity:** As an independent primary obligation, the Guarantor's' agree to fully indemnify and hold harmless the Lender against any loss, liability, cost, or expense incurred as a result of any failure by the Borrower to pay or perform the Principal's Obligations.

3. CONTINUING SECURITY & JOINT LIABILITY

3.1 **Continuing Security:** This Guarantee shall be a continuing security for all the Borrower's Obligations and shall not be discharged or affected by any intermediate payment, settlement of account, or the insolvency/liquidation of the Borrower.

3.2 **Joint & Several Liability:** The liability of the Guarantors' is joint and several. The Lender may enforce its rights against the/either Guarantor without first enforcing against the Borrower or exhausting other securities.

4. LIMITATION OF GUARANTEE & RECOVERIES

4.1 The aggregate principal recoverable from the Guarantors under this Guarantee shall not exceed **UGX ...../= (Uganda Shillings..... Only)(Original Borrowed Sum)**, together with:

- Accrued interest on the principal amount at the agreed rate up to the date of full payment; and
- All legal, recovery, stamping, and enforcement costs incurred by the Lender in enforcing this Guarantee.

5. DISCHARGES AND RELEASES AVOIDED (PROTECTION CLAUSES)

5.1 **Non-Impairment of Liability:** The liability of the Guarantor's' shall remain fully binding and shall not be impaired, released, or discharged by:

5.1.1 Any extension of time, indulgence, or forbearance granted by the Lender to the Borrower;

5.1.2 Any variation, amendment, renewal, or restructuring of the loan agreement;

5.1.3 The Lender releasing, compounding, or failing to perfect any other security or guarantee held for the loan;

5.1.4 Any death, incapacity, bankruptcy, or insolvency of any Guarantor's' or the Borrower;

5.1.5 Any act or omission by the Lender which, but for this provision, might operate to discharge the Guarantor's'.

5.2 **Reinstatement of Guarantee:**

Any discharge or release given by the Lender shall be void if any payment or security received by the Lender is subsequently set aside or avoided under insolvency, bankruptcy, or liquidation laws.

6. CLAIMS & WAIVER OF RIGHTS BY GUARANTORS

6.1 Until all Principal's Obligations are fully discharged, the Guarantors shall not, in competition with or to the detriment of the Lender:

- Claim any set-off, counterclaim, or right of subrogation against the Borrower;
- Claim or prove in insolvency/liquidation of the Borrower in competition with the Lender;
- Claim any contribution from any co-surety in respect of payments made under this Guarantee.

7. SUSPENSE ACCOUNT & EVIDENCE OF DEBT

7.1 **Suspense Account:** The Lender may place and keep any monies recovered under this Guarantee in a separate suspense account without immediate obligation to apply the same towards discharging the debt, to preserve the Lender's right to prove for the full debt against the Borrower.

7.2 **Conclusive Evidence:** A certificate issued by an authorized officer of the Lender stating the amount of the Principal's Obligations due shall be conclusive evidence of the debt binding on the Guarantor's'.

8. ASSIGNMENT & TRANSFER

8.1 **Rights of the Lender:** The Lender shall have a full and unfettered right to assign or transfer the whole or any part of the benefit of this Guarantee without the consent of the Guarantor's'. The expression "Lender" shall include all assignees and successors in title.

8.2 **Restriction on Guarantors:** The Guarantors shall not have the right to assign or transfer any of their rights or obligations under this Agreement.

9. BORROWER AS A PARTNERSHIP

9.1 If the Borrower is a partnership, this Guarantee shall extend to all monies and liabilities owing to the Lender prior to any change or dissolution of the partnership, and shall continue in full force notwithstanding the retirement, death, or admission of any partner.

10. NOTICES AND SERVICE

10.1 **Service of Notices:** Any notice or demand required to be given hereunder shall be in writing and deemed effectively served:

- (a) When delivered by hand to the address of the recipient; or
- (b) Three (3) days after posting by registered mail, provided proof of posting is retained.

10.2 **Multiple Guarantors:** Any notice or demand served on any one of the Guarantors shall be deemed as effective service on all Guarantors.

10.3 **Death of a Guarantor:** In the event of the death of a Guarantor, notice or demand addressed to the deceased or their personal representatives at their last known address shall remain fully valid and binding on the estate of the deceased until the Lender receives formal written notice of probate/letters of administration.

11. GOVERNING LAW & JURISDICTION

11.1 This Guarantee shall be governed by and construed in accordance with the laws of the **Republic of Uganda**.

11.2 The Guarantor's' irrevocably submit to the jurisdiction of the Courts of Uganda for the enforcement of this Guarantee.

IN WITNESS WHEREOF, the parties hereto have executed this Guarantee Agreement the day and year first above written.

SIGNED AND DELIVERED by the Guarantors:

Guarantor 1 Signature

Name: _____

Address: _____

Occupation: _____

NIN: _____

In the presence of (Witness):

Signature: _____

Name: _____

Address: _____

Occupation: _____

Guarantor 2 Signature

Name: _____

Address: _____

Occupation: _____

NIN: _____

In the presence of (Witness):

Signature: _____

Name: _____

Address: _____

Occupation: _____

ACCEPTED AND ACKNOWLEDGED FOR AND ON BEHALF OF THE LENDER:

Authorized Signatory

Name: _____

Title: _____

TITANIUM FINANCIAL CONSULTANCY CO LIMITED